TITLE 43 - Public Printing and Advertisements

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RS 43:1

TITLE 43PUBLIC PRINTING AND ADVERTISEMENTS Purchase of printing and engraving; office of technology services; Louisiana Procurement Code; power and authority of state chief information officer

TITLE 43

PUBLIC PRINTING AND ADVERTISEMENTS

CHAPTER 1. STATE PRINTING

§1. Purchase of printing and engraving; office of technology services; Louisiana Procurement Code; power and authority of state chief information officer

A. All administrative boards, commissions, departments, agencies, institutions, and offices within the executive branch of the state government shall purchase all requirements of printing and engraving through the office of technology services in the division of administration. This provision, however, shall not apply to postsecondary institutions of education and their management boards, the Board of Regents, special schools, and other institutions under the supervision of the State Board of Elementary and Secondary Education, the port authorities of the state, the legislature, the office of the State Bond Commission in the Department of the Treasury, or the judiciary. All procurement of such printing and engraving for the executive departments of state government shall be done under and in accordance with the provisions of the Louisiana Procurement Code.

B. In order to carry out the duties and functions imposed upon him by this Chapter, in conjunction with the Louisiana Procurement Code, the state chief information officer shall have the power and authority:

(1) To consult, review, and make recommendations with regard to all printing requirements in order that the best and most economical methods may be employed.

(2) To delegate the purchase of printing to any instrumentality covered by this Chapter whenever in his written opinion the best interests of the state will be served thereby.

(3) To use any and all powers and authority granted to him by law or otherwise delegated to him by competent authority.

Acts 1983, No. 306, §2; Acts 1988, No. 843, §1, eff. July 1, 1988; Acts 1997, No. 677, §1; Acts 2015, No. 241, §2.

RS 43:2

To 13 Repealed by Acts 1983, No. 306, 3.

§2. §§2 to 13 Repealed by Acts 1983, No. 306, §3.

RS 43:14

Printing for the House and Senate

§14. Printing for the House and Senate

Each of the two houses of the legislature shall order, audit, contract and pay for its own printing, binding and supplies, and shall issue its own orders and see that its contracts are complied with, except that joint or separate bids shall be obtained and joint or separate contracts or purchase orders awarded for (1) proof sheets, calendars and journals, (2) bills and resolutions, (3) printing and binding of acts, (4) case binding of acts, and (5) miscellaneous printing and supplies as may be required from time to time by the purchasing agent.

Amended by Acts 1980, No. 671, §1.

RS 43:15

Bills and other documents to be printed and delivered in a certain time

§15. Bills and other documents to be printed and delivered in a certain time

Whoever is awarded the contract by the legislature for the printing of any bills, reports, or other documents provided for and enumerated in R.S. 43:14 shall deliver them in the order in which they are numbered and delivered to him, or as he may be otherwise directed by the chief clerical officer of the respective house, and shall return them in like manner within forty-eight hours after their reception unless otherwise stipulated in the specifications set out by the purchasing agent.

Amended by Acts 1980, No. 671, §1.

RS 43:16

House and Senate journals; time for delivery and penalty for failure

§16. House and Senate journals; time for delivery and penalty for failure

Whoever is awarded the contract for the journals of the houses of the legislature shall furnish and have the journals ready for delivery within sixty days after the adjournment of the legislature. The sum of one hundred dollars per house shall be paid by the contractor for each day he is in default after the expiration of the sixty days.

Amended by Acts 1980, No. 671, §1.

RS 43:17

Proof sheets of House and Senate journals

§17. Proof sheets of House and Senate journals

Whoever is awarded the contract for the official journal of the houses of the legislature shall supply each house with proof sheets of the official journal, containing the proceedings of the previous day of meeting. After the journal has been approved, the same matter so published shall be made up in book form.

Amended by Acts 1980, No. 671, §1.

RS 43:18

Style, form, binding and delivery date of House and Senate journals; contract provision

§18. Style, form, binding and delivery date of House and Senate journals; contract provision

The style, form, binding, and delivery date of the Senate and House journals shall be as provided in the contract for such documents.

Amended by Acts 1980, No. 671, §1.

RS 43:19

Laws to be printed in book form; style of printing; number of copies

§19. Laws to be printed in book form; style of printing; number of copies

The acts of the legislature shall be published in book form, in the English language, with a list of the acts, the dates of their promulgation and an index thereto. Below each act shall be printed the date of approval by the governor, if approved, or by the legislature in the case of vetoed bills becoming law upon reconsideration by the legislature. The number of copies printed shall be at the discretion of the secretary of state but shall not exceed one thousand five hundred copies. The copies shall be delivered to the secretary of state as soon as possible after the adjournment of the legislature.

Amended by Acts 1975, 1st Ex.Sess., No. 1, §1, eff. Jan. 24, 1975; Acts 1976, No. 350, §2; Acts 1987, No. 223, §1; Acts 2010, No. 802, §1, eff. Jan. 1, 2011.

RS 43:19.1

Legislative web site

§19.1. Legislative web site

Any legislative or governmental instrument, journal, index, order, report, or other official document of the state which has previously been published in the official journal of the state as provided for in R.S. 43:81(A) may be made accessible on the official Internet website or portal of the Louisiana State Legislature.

Acts 2004, No. 708, §1, eff. July 6, 2004; Acts 2010, No. 802, §1, eff. Jan. 1, 2011.

RS 43:20

Bills and resolutions; contract provisions

§20. Bills and resolutions; contract provisions

Bills and resolutions of the Senate and House shall be printed in accordance with contracted specifications for such printing. The secretary of the Senate and the clerk of the House of Representatives shall order the requisite number of copies needed by the Senate and House, respectively.

Amended by Acts 1980, No. 671, §1.

RS 43:21

Repealed by Acts 1950, No. 367, 3

§21. Repealed by Acts 1950, No. 367, §3

RS 43:22

Sale of Acts; price

§22. Sale of Acts; price

The secretary of state shall retain and keep in the state archives at all times one printed copy and one microfilm copy of the Acts of the legislature delivered to him as provided in R.S. 43:19. The secretary of state shall collect from any person or public or private entity to which he distributes a copy or copies of the Acts of the legislature, except any state agency or official to which he is required by law to distribute copies, a fee equal to the cost, plus ten percent of such cost, of printing and delivery thereof.

Amended by Acts 1950, No. 367, §2; Acts 1977, No. 567, §1, eff. July 15, 1977; Acts 2015, No. 383, §3, eff. July 1, 2015.

RS 43:23

Documents numbered as sent to printer

§23. Documents numbered as sent to printer

The secretary of the senate and the clerk of the house of representatives shall regularly number each bill, report or other document of any kind whatsoever, which may be ordered printed by either house, the number of which shall be endorsed thereon, "Printing No. _____". They shall make the corresponding entry on the bill book and shall also endorse on the bill, report or other document, the day on which it was ordered printed and the day of delivery to the person, firm or corporation to whom the contract for printing was awarded. They shall make corresponding entries on the bill book.

RS 43:24

Acts; numbering; printing; publication

§24. Acts; numbering; printing; publication

A. The governor shall transmit each bill delivered to him by the legislature, other than vetoed bills, to the secretary of state as soon as possible after he has taken action thereon and in any event no later than twenty days after the delivery of such bills to him. Similarly, the chief clerical officer of each house shall transmit all vetoed bills to the secretary of state after the legislature has acted or determined not to act on them, or has found a veto session unnecessary. The secretary of state shall keep a register of such bills and shall endorse therein the date and time of their receipt from the governor or the legislature. The secretary of state shall assign act numbers to all bills which become law.

B. The secretary of state shall, upon request, deliver copies of the acts, in numerical order by act number, to the person, firm, or corporation to whom the contract for printing acts was awarded. The acts shall be published in numerical order by act number. The secretary of state shall endorse in the register required in Subsection A of this Section the date and time of delivery of the acts for printing.

C. The secretary of state shall take all necessary actions to cause the acts and joint resolutions of the legislature to be made accessible on the Internet website or portal of the Official Journal of the State within the time limits established by R.S. 43:81.

D.(1) Within sixty days following the final adjournment of a regular, extraordinary, or emergency session of the legislature, the secretary of state shall cause a notice to be published once in the official journal of each parish, informing the public where the full text of the acts of the legislature may be viewed. Requirements for the notice shall include:

(a) The notice shall appear in a box format with a bolded outline in a size of not less than three columns by ten and one half inches or a comparable size.

(b) Appropriately-sized headline typeface shall be used.

(c) The language of the notice shall be prepared by the secretary of state and shall include the website address for the Official Journal of the State.

(2) The cost of each notice required by Paragraph (1) of this Subsection shall be a maximum of ninety percent of the commercial display advertising rate charged by the official journal of each parish for a similar volume of business.

Amended by Acts 1975, 1st Ex.Sess., No. 1, §1, eff. Jan. 24, 1975; Acts 1988, No. 843, §1, eff. July 1, 1988; Acts 2010, No. 802, §1, eff. Jan. 1, 2011.

RS 43:25

Each house of the legislature to judge whether contract complied with

§25. Each house of the legislature to judge whether contract complied with

Each house of the legislature shall be the judge as to whether the work done for, or materials furnished to it, comply with the terms of its contracts or purchase orders.

Acts 1983, No. 306, §2.

RS 43:26

Repealed by Acts 1983, No. 306, 3.

§26. Repealed by Acts 1983, No. 306, §3.

RS 43:26.1

Louisiana Official Statement; State Bond Commission

§26.1. Louisiana Official Statement; State Bond Commission

The State Bond Commission may order, contract, and pay for its own printing of the Official Statement pertaining to the issuance of state general obligation bonds after taking price quotes from at least three separate printers. Each printer shall represent that he has the capability to complete the necessary printing within the time frame stated to be necessary by the secretary of the commission. The printer agreeing to perform the necessary services in the required time for the lowest cost shall be used.

Added by Acts 1981, No. 664, §3, eff. July 20, 1981.

RS 43:27

Subletting of contract not to release general contractor from bond

§27. Subletting of contract not to release general contractor from bond

No person, firm, or corporation who has been awarded a contract under the provisions of this Chapter or any surety thereof, shall be relieved of any obligation to the state by any subletting of a contract in whole or in part.

RS 43:28

Repealed by Acts 1988, No. 843, 2, eff. July 1, 1988.

§28. Repealed by Acts 1988, No. 843, §2, eff. July 1, 1988.

RS 43:29

Use of state owned facilities

§29. Use of state owned facilities

The right is reserved to use state facilities as designated by the commissioner of administration for all printing, multilith, mimeographing, and similar work for all state departments, boards, commissions, and any other state agencies to which this Chapter applies.

Acts 1988, No. 843, §1, eff. July 1, 1988.

RS 43:30

Repealed by Acts 1983, No. 306, 3.

§30. Repealed by Acts 1983, No. 306, §3.

RS 43:31

Printed matter prohibitions; uniform standards; election material

§31. Printed matter prohibitions; uniform standards; election material

A.(1) No branch, department, agency, official, employee, or other entity of state government shall print or cause to be printed any bulletin, leaflet, Christmas card, personalized memorandum stationery, or other similar communication, house organ, circular, book, report, or similar publication, except those required by law.

(2) All printed matter so required shall be effected in a uniform manner as to basic content, size, quality of paper, and use of color as contained in standards to be established by the Division of Administration, the legislative budgetary control council, and the judicial budgetary control council. The Division of Administration, legislative budgetary control council, and the judicial budgetary control council shall be empowered to make such exceptions affecting their respective branch of government to the provisions of this Subsection as may be in the best interests of the state of Louisiana.

(3) In addition, the provisions of this Subsection shall not be construed to prohibit the printing or publication of any printed matter required by any federal law or regulation in order that the state or any department or agency thereof may obtain or receive federal funds, grants, or assistance. The provisions of this Section shall apply to printed matter printed pursuant to any such federal law or regulation to the extent that this Section does not conflict with any such law or regulation.

(4) Louisiana Works is not prohibited from printing, or causing to be printed, any statistical or other information, including legal publications, relating to employment conditions of workers or other publications, not required by law, that would be helpful to any person affected by laws or rules and regulations of the department.

(5) The Department of Culture, Recreation and Tourism is not prohibited from printing, or causing to be printed, any new promotional materials that enhance the development and implementation of cultural, recreational, and tourism programs when funds have been appropriated for that purpose.

(6) The Department of Wildlife and Fisheries is not prohibited from printing, or causing to be printed, any new promotional materials that enhance the development and implementation of natural, recreational, and tourism programs when funds have been appropriated for that purpose.

B.(1)(a) All printed matter, except documentation in connection with proceedings of the executive, legislative, and judicial branches of state government, printed or caused to be printed by any branch, department, agency, official, employee, or other entity of state government, shall contain the following statement, with required information inserted, printed on the publication adjacent to the identification of the agency responsible for publication: "This public document was published at a total cost of $_____. (number) copies of this public document were published in this (number) printing at a cost of $_____. The total cost of all printings of this document, including reprints is $_____. This document was published by (name and address of person, firm, or corporation or agency which printed the material) to (statement of purpose) under authority of (citation of law requiring publication or of special exception by division of administration, the legislative budgetary control council, or the judicial budgetary control council as provided in Subsection A of this Section). This material was printed in accordance with the standards for printing by state agencies established pursuant to R.S. 43:31." If the printing of the material was not done by a state agency, the above statement shall include the following additional language: "Printing of this material was purchased in accordance with the provisions of Title 43 of the Louisiana Revised Statutes." This statement shall be

printed in the same size type as the body copy of the document and shall be set in a box composed of a one-point rule.

(b) Notwithstanding the provisions of Subparagraph (a) of this Paragraph or of Subsection C of this Section, the legislative budgetary control council may determine at a meeting of the council the form and the content of any such statement for matter printed by the House of Representatives or any member thereof or the Senate or any member thereof.

(2) The provisions of this Subsection shall not apply to the following:

(a) Any leaflet, postcard, brochure of no more than two pages, or magazine, if the magazine contains the statement "Paid for with public funds provided by the people of Louisiana" and is sent exclusively to persons or entities located outside of the state, used by Louisiana Economic Development for the purpose of promoting economic development within the state of Louisiana.

(b) Any leaflet, postcard, brochure of no more than two pages, or magazine, if the magazine contains the statement "Paid for with public funds provided by the people of Louisiana" and is sent exclusively to persons or entities located outside of the state, used by the Department of Culture, Recreation and Tourism to promote culture, recreation, or tourism.

(c) Any printed matter used by a public institution of postsecondary education that is an academic or scholarly document or that is a leaflet, postcard, or brochure of no more than two pages designed to promote the institution.

(d) Any reports, research, or studies of a medical center or health care institution in the health care services division of the Louisiana State University Health Sciences Center.

(3) Louisiana Economic Development, the Department of Culture, Recreation and Tourism, each public institution of postsecondary education, and each medical center and health care institution in the health care services division of the Louisiana State University Health Sciences Center shall submit a report to the Joint Legislative Committee on the Budget within forty-five days of the close of each fiscal year. Each report required by this Paragraph shall contain information regarding actual expenses associated with the printed matter provided for in Paragraph (2) of this Subsection for the fiscal year being reported and, if required by R.S. 43:31.1, shall include a copy of the needs assessment performed in the manner provided by R.S. 43:31.1 for each publication in the fiscal year being reported.

C. The following three factors shall be utilized in computing cost data:

(1) Preparation of the public document for publication;

(2) Printing, including all expenditures for reproduction, whether on bid or in-house;

(3) Circulation, including all estimated expenditures for postage and distribution of the public document.

D. No branch, department, agency, official, employee, or other entity of state government shall expend funds of, administered by, or under the control of any branch, department, agency, employee, official, or other entity of state government to print material or otherwise to urge any elector to vote for or against any candidate or proposition on an election ballot nor shall such funds be used to lobby for or against any proposition or matter having the effect of law being considered by the legislature or any local governing authority. This provision shall not prevent the normal dissemination of factual information relative to a proposition on any election ballot or a proposition or matter having the effect of law being considered by the legislature or any local governing authority.

E. No public official of any branch, department, agency, or other entity of state or local government shall affix his or her name or picture on drivers' licenses, except their own personal

driver's license, issued by the state, or any publicly owned motor vehicle, nor shall any such official cause his name or picture to be so affixed.

F.(1) Any administrative head of any branch, department, agency, or entity who violates any provision of this Section and any employee who, without the authorization of his administrative superior, violates any provision of this Section shall be personally liable for the cost of any printing in violation of this Section. Any funds of, administered by, or under the control of any branch, department, agency, official, employee, or other entity of state government expended on any printing in violation of this Section may be recovered by the state in a civil action instituted by the attorney general or any taxpayer.

(2) Any person who violates the provisions of this Section shall be assessed a fine by the court of not more than five hundred dollars.

Added by Acts 1976, No. 442, §1. Amended by Acts 1978, No. 130, §1; Acts 1979, No. 655, §1; Acts 1981, No. 652, §1, eff. July 20, 1981; Acts 1983, No. 390, §1; Acts 1986, No. 813, §1; Acts 1989, No. 440, §1; Acts 1995, No. 549, §1; Acts 1997, No. 9, §1; Acts 2004, No. 138, §2; Acts 2006, No. 535, §1, eff. June 22, 2006; Acts 2008, No. 743, §7, eff. July 1, 2008; Acts 2010, No. 574, §1.

RS 43:31.1

Printed matter; needs assessment

§31.1. Printed matter; needs assessment

A. Any department, agency, branch, official, employee, or other entity of state government seeking to print or have printed any public document shall perform a needs assessment to determine the need for such publication. The needs assessment shall include information relative to the content of the matter to be printed, the reason for printing, the number of copies to be printed, the distribution and mailing list for the printing, and any other particular specifications such as paper weight and color. If the printed matter is to include a picture of a public official or employee, the needs assessment shall further include a specific reason for the inclusion of the picture in the publication. The needs assessment shall be provided to and approved by the appropriate administrative head or department secretary prior to the expenditure of any funds for the printing of such document. The needs assessment shall be a public document and shall be open for public inspection and copying as provided by R.S. 44:1 et seq.

B. The provisions of this Section shall not apply to colleges, universities, or any other higher education institutions.

Acts 1997, No. 485, §1; Acts 2010, No. 575, §1.

RS 43:32

Distribution of printed matter

§32. Distribution of printed matter

Except for interagency distribution and distribution otherwise required by law, no state department, agency, or other instrumentality of state government shall distribute any printed materials in excess of ten pages in length, unless the availability of such printed materials has been announced by written notice stating the title or subject matter of the printed material and that such materials shall be mailed upon receipt of a written request therefor. Such written notice may be mailed to the names on the regular mailing list and to any others deemed by the department, agency, or other instrumentality of state government to be interested parties.

The provisions of this Section shall not apply to the distribution of printed material by any public college or university to potential students for recruitment purposes.

Added by Acts 1981, No. 768, §1.

RS 43:33

Printed matter; missing children information

§33. Printed matter; missing children information

A. As a public service, each state department and agency that publishes a periodical of an informational nature that has as its intent public distribution rather than solely internal or interagency distribution is authorized to have published in each issue of such periodical the picture and name of one or more Louisiana children believed to be missing, or children from other states believed to be missing in Louisiana. The periodical also may include the toll-free telephone number provided by the National Center for Missing and Exploited Children for the purpose of receiving information related to a missing child or children.

B.(1) Each state department and agency shall identify and provide to the Division of Administration a list of their periodicals that have public distribution and such other department or agency publications that have wide enough circulation to be useful for the purpose of disseminating information about such missing children.

(2) The Division of Administration and the office of state police shall develop such policies, rules, and regulations as shall be necessary to implement this Section, including, but not limited to, policies, rules, and regulations concerning the nature and number of department or agency publications that shall be used for this purpose, the number of such missing child identities that may be published in each periodical, and the provision of any other information deemed pertinent to this purpose.

(3) The Division of Administration is hereby authorized to consult and coordinate with the National Center for Missing and Exploited Children, any other public, quasi-public, or private organization, or agency, the purpose of which is to provide information and assistance related to missing children, and local law enforcement agencies in order to implement the provisions of this Section.

Acts 1985, No. 892, §1, eff. July 23, 1985.

RS 43:33.1

Mailing lists for printed matter; requirements

§33.1. Mailing lists for printed matter; requirements

A. Each branch, department, agency, official, employee, or other entity of state government shall maintain a separate mailing list for each publication printed by such branch, department, agency, official, employee, or entity. Each mailing list shall be purged at least once every two years, and, except for mailings required by law, shall be replaced by a list of persons actively requesting receipt of that particular publication.

B. This Section shall not apply to any printed publication for which federal funds have been provided.

Acts 1995, No. 1298, §1.

RS 43:34

Louisiana Conservationist magazine; information on missing children; publication required

§34. Louisiana Conservationist magazine; information on missing children; publication required

The Department of Wildlife and Fisheries, in conjunction with the Missing and Exploited Children Information Clearinghouse* of the Department of Public Safety and Corrections, office of state police, shall publish in each issue of the Louisiana Conservationist magazine the picture, name, and description of one or more Louisiana children believed to be missing or the picture, name, and description of one or more children believed to be missing in Louisiana. In addition, the department shall also publish in the Louisiana Conservationist magazine in reasonable proximity to such names and pictures, the names of children whose pictures were published in the magazine and the dates that they were located. The toll-free telephone number provided by the National Center for Missing and Exploited Children for the purpose of receiving information related to a missing child or children shall be published with the consent of the organization.

Acts 1986, No. 773, §1; Acts 2011, No. 70, §2.

NOTE: *R.S. 46:1431.

RS 43:81

Official journal of state

CHAPTER 2. STATE OFFICIAL JOURNAL

NOTE: §81 eff. until July 1, 2027. See Acts 2025, No. 374.

§81. Official journal of state

A. The printing of advertisements, public notices, proclamations, and all public notices and advertising to be done by the legislature, or the executive or other departments and institutions of the state government, shall be published in a daily newspaper to be known and designated as the "Official Journal of the State", which newspaper shall have and possess the following qualifications:

(1) It shall possess the periodicals class mailing privilege.

(2) It shall be published in and have a general circulation in Louisiana.

(3) It shall have been so published at least once per week for a period of not less than two years prior to the time that it is awarded the contract as the Official Journal of the State, as provided in this Chapter.

B.(1) For the purposes of Article III, Section 19 of the Constitution of Louisiana, the Official Journal of the State shall be the Internet website or portal of the Official Journal of the State.

(2) All laws and joint resolutions shall be accessible through the Official Journal of the State as defined in this Subsection prior to the sixtieth day after final adjournment of the session in which they were enacted and shall remain accessible for at least one year. Any act that contains an effective date prior to the sixtieth day after final adjournment shall be accessible prior to the effective date contained therein, if possible, or if not possible, as soon as possible after such effective date.

NOTE: §81 as amended by Acts 2025, No. 374, eff. July 1, 2027.

§81. Official journal of state

A. Advertisements, public notices, proclamations, and all public notices and advertising to be done by the legislature, or the executive or other departments and institutions of the state government, shall be published on a website established and maintained by the commissioner of administration to be known and designated as the "Official Journal of the State". Except public notices required by the Constitution of Louisiana, the legislature may publish any advertisements, public notices, or proclamations on the legislature's website.

B.(1) For the purposes of Article III, Section 19 of the Constitution of Louisiana, all laws and joint resolutions shall be accessible through the Official Journal of the State as defined in this Section prior to the sixtieth day after final adjournment of the session in which they were enacted and shall remain accessible for at least one year. Any act that contains an effective date prior to the sixtieth day after final adjournment shall be accessible prior to the effective date contained therein, if possible, or if not possible, as soon as possible after such effective date.

(2) For purposes of Article X, Section 29 of the Constitution of Louisiana, the commissioner of administration shall promulgate rules and fees in accordance with the Administrative Procedure Act to provide for the publication of notices on the Official Journal of the State by any person, without cost to the state, of a proposal to effect any change in existing laws or constitutional provisions relating to any retirement system for public employees.

Acts 1954, No. 127, §1; Acts 1975, 1st Ex. Sess., No. 1, §1, eff. Jan. 24, 1975; Acts 2010, No. 802, §1, eff. Jan. 1, 2011; Acts 2024, No. 464, §1; Acts 2025, No. 374, §1, eff. July 1, 2027.

RS 43:81.1

Cost of publication

NOTE: §81.1 eff. until July 1, 2027. See Acts 2025, No. 374.

§81.1. Cost of publication

The Official Journal of the State shall include a statement of the cost charged to the state agency for publication with any notice, advertisement, proclamation, or other information that it publishes for a state agency pursuant to a legal requirement that the information be published. The official journal shall not charge the agency for printing this statement of cost.

NOTE: §81.1 as amended and redesignated from R.S. 49:1301 by Acts 2025, No. 374, eff. July 1, 2027.

§81.1. Commissioner of administration; duties; sunset review of boards and commissions

A. The commissioner of administration shall post the information designated in R.S. 43:82 on the Official Journal of the State.

B.(1) If the commissioner of administration determines that a board or commission has failed to submit the information required pursuant to R.S. 43:84 in the manner required by this Chapter, the commissioner shall send the board or commission a notice of noncompliance by certified mail, return receipt requested.

(2)(a)(i) If the board or commission fails to submit the information required pursuant to R.S. 43:84 in the manner required by this Chapter within the response period, the commissioner shall send notice detailing the failure to comply to the board or commission and to the chief administrative officer of the department of which the board or commission is a part, if applicable.

(ii) The commissioner shall also send notice detailing the failure to comply to the Senate Committee on Senate and Governmental Affairs, the House Committee on House and Governmental Affairs, and the oversight committees for the board or commission.

(b)(i) Each oversight committee that receives a notice pursuant to Item (a)(ii) of this Paragraph may within sixty days of receiving the notice evaluate the board or commission and determine whether the board or commission should be continued, modified, or terminated. The committee may direct the board or commission to begin to terminate its operations and to prepare for the orderly transfer or termination of its powers, duties, responsibilities, and functions, as appropriate.

(ii) No later than thirty days prior to the beginning of a regular session, each oversight committee that received a notice pursuant to Item (a)(ii) of this Paragraph during the year prior to the year in which the session is to be held may submit a report to the legislature and the governor. The report shall contain a summary of all action taken by the committee with respect to each such notice. The report shall also contain the committee's determination as to whether each board or commission that was the subject of such a notice should be continued, modified, or terminated and any legislation concerning the board or commission that the committee will propose to the legislature.

(c)(i) For purposes of this Paragraph, "response period" means the period of time beginning with the day the notice of noncompliance sent pursuant to Paragraph (1) of this Subsection is received by the board or commission and ending ninety days later.

(ii) For purposes of this Paragraph, "oversight committees" means the standing committees of the two houses of the legislature which have usual jurisdiction over the affairs of the board or commission.

C. The provisions of Subsection B of this Section shall not apply to any board which is responsible for the administration of any statewide retirement fund held in trust for the benefit of its participants and which retirement fund is not the direct financial responsibility of the state.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2013, No. 184, §16; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1301.

NOTE: See Acts 2009, No. 12, §2.

RS 43:82

Contract to be let by bids; duration of contract

NOTE: §82 eff. until July 1, 2027. See Acts 2025, No. 374.

§82. Contract to be let by bids; duration of contract

The contract for printing by the "State Printer of the Official Journal of the State" shall be let to the lowest bidder possessing the qualifications enumerated in R.S. 43:81(A), and shall run for a period of two years beginning July first and ending June thirtieth.

NOTE: §82 as amended and redesignated from R.S. 49:1302 by Acts 2025, No. 374, eff. July 1, 2027.

§82. Content

The commissioner of administration shall post on the Official Journal of the State the following information for boards and commissions:

(1) Each notice of a meeting required to be given pursuant to R.S. 42:19, including all of the information required pursuant to R.S. 42:19 to be included in the notice.

(2) Minutes of meetings required to be made available to the public pursuant to R.S. 42:20, including any attachments.

(3) Audio and video recordings of meetings required to be made available pursuant to R.S. 42:23.

(4) Statutory citations to provisions specifically creating the board or commission, providing for its membership, and providing for its powers and authority.

(5) Contact information, including the name of one or more contacts at the board or commission; a mailing address; an email address, if applicable; a website address, if applicable; and a phone number.

(6)(a) Membership information, including the number, names, compensation, terms, length of service, and method of selection of members.

(b) The information required by Subparagraph (a) of this Paragraph shall include per diem and reimbursement for travel expenses, including the amount of such expenses paid per meeting and an aggregate amount of such expenses paid per fiscal year.

(7) Employee information, including the number, job description or title, and salaries of employees.

(8) Financial and budget information, including a detailed description of revenues and expenditures for the current fiscal year and the previous two fiscal years.

(9) The rules, regulations, and procedures of the board or commission.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2010, No. 814, §2, eff. May 1, 2011; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1301.

NOTE: See Acts 2009, No. 12, §2.

RS 43:83

Invitation for bids

NOTE: §83 eff. until July 1, 2027. See Acts 2025, No. 374.

§83. Invitation for bids

The Division of Administration, Office of the Governor, shall give notice of the letting of the contract by having an invitation for bids inserted in three or more of the leading newspapers published in the state, for three weeks prior thereto, and all printing as provided for in this Chapter shall be let in one contract.

NOTE: §83 as amended and redesignated from R.S. 49:1303 by Acts 2025, No. 374, eff. July 1, 2027.

§83. Submission of notices and minutes

A. Each board and commission shall submit each notice required to be included on the Official Journal of the State pursuant to R.S. 43:82(1) to the commissioner of administration in a manner which allows the commissioner enough time to post the notice prior to the deadline applicable to the board or commission for giving notice pursuant to R.S. 42:19.

B. Each board and commission shall submit minutes required to be included on the Official Journal of the State pursuant to R.S. 43:82(2) to the commissioner of administration within ten days after the minutes are adopted by the board or commission.

C. All submissions of information required by this Section shall be made in an electronic format designated by the commissioner of administration.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1303.

NOTE: See Acts 2009, No. 12, §2.

RS 43:84

Form of bids; bond

NOTE: §84 eff. until July 1, 2027. See Acts 2025, No. 374.

§84. Form of bids; bond

All bids received by the Division of Administration, Office of the Governor, shall be by sealed proposals addressed to the Division of Administration, and each bid must be marked "Bid for Printing Advertisements, Public Notices, Proclamations, etc., in the Official Journal of the State", and must be accompanied by a bond (which shall serve as both a bid and performance bond) in favor of the Governor of the state of Louisiana, with good and sufficient sureties to be approved by the Division of Administration in the sum of ten thousand dollars, conditioned for the faithful performance of all duties devolving upon the contractor by law and payment of all damages which may result from neglect or delay. There shall be implied in every bid and contract the promise and obligation to comply with all requirements of law. The Division of Administration shall have the right to reject any and all bids. No member or officer of any of the departments of the government of this state shall be in any way directly or indirectly interested in any such contract.

NOTE: §84 as amended and redesignated from R.S. 49:1304 by Acts 2025, No. 374, eff. July 1, 2027.

§84. Submission of other information

A. Each board and commission shall fully cooperate with the commissioner of administration in implementing and complying with the requirements of this Chapter.

B.(1) Except as provided in R.S. 43:83, each board and commission shall submit to the commissioner of administration all information required to be included on the Official Journal of the State pursuant to R.S. 43:82 by February first of each year. Except as provided in R.S. 43:82 relative to membership information and financial and budget information, the information shall be complete for the previous calendar year.

(2) The information required to be submitted pursuant to this Section shall be submitted by an appropriate officer of the board or commission. The officer shall certify that the information submitted is true and correct to the best of his knowledge, information, and belief.

C. All submissions of information required by this Section shall be made in an electronic format designated by the commissioner of administration.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2013, No. 184, §16; Acts 2014, No. 791, §18; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1304.

NOTE: See Acts 2009, No. 12, §2.

RS 43:85

Information in bids; price

NOTE: §85 eff. until July 1, 2027. See Acts 2025, No. 374.

§85. Information in bids; price

All bids for printing as provided for under the provisions of this Chapter shall contain the price per agate line, and shall name a daily newspaper possessing the qualifications enumerated in R.S. 43:81, as the medium of publication, but no bid shall be accepted and no contract shall be let which allows a price per agate line in excess of the maximum price per agate line permitted to be paid for advertisements in judicial proceedings or any other legal proceedings in the Parish of East Baton Rouge.

NOTE: §85 as amended and redesignated from R.S. 49:1305 by Acts 2025, No. 374, eff. July 1, 2027.

§85. Applicability

For purposes of this Chapter, "boards and commissions" shall have the same meaning as provided in R.S. 42:1124.2.1(D)(1)(a)(i) and shall include any committee, subcommittee, or panel of any board or commission.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2010, No. 814, §2, eff. May 1, 2011; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1305.

NOTE: See Acts 2009, No. 12, §2.

RS 43:86

State printer of the official journal of state

NOTE: §86 eff. until July 1, 2027. See Acts 2025, No. 374.

§86. State printer of the official journal of state

The contractor who obtains the contract for the printing provided for under the provisions of this Chapter shall be designated as the "State Printer of the Official Journal of the State", and the newspaper so designated to print said advertising shall be known as the "Official Journal of the State".

NOTE: §86 as amended and redesignated from R.S. 49:1305.1 by Acts 2025, No. 374, eff. July 1, 2027.

§86. Duties of the commissioner

A. The commissioner of administration shall maintain the information required by this Chapter in an easily searchable format and shall provide for the capability for members of the public to request and receive electronic notifications of meetings.

B. The commissioner of administration shall establish a timeline and plan for the implementation of the technological functions required by Subsection A of this Section.

Acts 2024, No. 617, §2; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1305.1.

RS 43:87

Repealed by Acts 2010, No. 802, §2, eff. Jan. 1, 2011.

NOTE: §87 eff. until July 1, 2027. See Acts 2025, No. 374.

§87. Repealed by Acts 2010, No. 802, §2, eff. Jan. 1, 2011.

NOTE: §87 as amended and redesignated from R.S. 49:1306 by Acts 2025, No. 374, eff. July 1, 2027.

§87. Rules and regulations

The commissioner of administration may adopt rules and regulations in the manner provided by the Administrative Procedure Act to implement the provisions of this Chapter.

Acts 2009, No. 12, §1, eff. March 1, 2010; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1306.

RS 43:88

Nonperformance of contract by printer; forfeiture of bond

NOTE: §88 eff. until July 1, 2027. See Acts 2025, No. 374.

§88. Nonperformance of contract by printer; forfeiture of bond

Should the successful bidder refuse or fail to enter into an agreement with the State of Louisiana, Division of Administration, to serve as state printer of the official journal of the state after having been notified that its or his bid had been accepted, or should the state printer of the official journal of the state, after having entered into such an agreement with the state of Louisiana, Division of Administration, fail to faithfully perform all of the duties devolving upon said state printer by law or to comply with the terms of the agreement so entered into, such failure or noncompliance shall, after twenty days' notice in writing sent to it or him by registered mail, be construed as a breach of the obligations of said state printer of the official journal of the state, and the proceeds of the bond executed by it or him as provided in this Chapter shall, in addition to any or all other damages suffered by the State of Louisiana, Division of Administration, by virtue of any breach of the terms of the agreement, be due and payable to the State of Louisiana, Division of Administration, as and for liquidated damages, and shall be collectible without any further demand or putting in default, provided, however, that the said state printer of the official journal of the state shall not be deemed to be in default in the event that such failure to comply with its or his obligation shall be caused by contingencies, happenings or causes beyond its or his control, including, but not limited to, acts of God, force majeure, fire, flood, war, acts of government, accidents, inability to obtain material or equipment, or any other acts or events the cause of which is not attributable to the state printer of the official journal of the state.

NOTE: §88 as amended and redesignated from R.S. 49:1307 by Acts 2025, No. 374, eff. July 1, 2027.

§88. Legislative auditor

The legislative auditor shall work with the commissioner of administration to ensure that each board and commission complies with the provisions of this Chapter.

Acts 2010, No. 814, §2, eff. May 1, 2011; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1307.

RS 43:89

Cancellation of contract for non-performance; letting of contract for unexpired term; publication of notices or advertisements continued

NOTE: §89 eff. until July 1, 2027. See Acts 2025, No. 374.

§89. Cancellation of contract for non-performance; letting of contract for unexpired term; publication of notices or advertisements continued

A. Should the state printer of the official journal of the state fail to comply with the provisions of the contract under the terms of which it or he was designated as state printer and the contract is cancelled for such failure or noncompliance, after two days' notice in writing to such state printer and his failure to immediately resume his duties and obligations under such contract, the division of administration shall give notice of the letting of the contract for the unexpired portion of the two-year term thereof by having an invitation for bids inserted in three or more of the leading newspapers published in the state for three weeks prior thereto, and all printing as provided for in this Chapter for the unexpired term shall be let in one contract; provided that if there is no other newspaper published in the city of Baton Rouge, except one with the same principal ownership, which meets the qualifications required by R.S. 43:81(A), the contract for the unexpired term shall be made with a newspaper published in the city of New Orleans possessing all the other qualifications required by R.S. 43:81(A) except that of domicile.

B. As soon as practicable after any such default in or cancellation of the contract of the state printer, as hereinabove described, the division of administration shall negotiate with any other qualified newspaper published in the city of Baton Rouge, other than one under the same principal ownership of the newspaper which is in default, or if there be no other such qualified newspaper published in the city of Baton Rouge then to negotiate with one published in the city of New Orleans for the publication under the best possible terms of all printing required to be published in the official journal of the state until such time as a new contract can be let for the unexpired portion of the two-year term.

C. Should any of the matter required to be printed under R.S. 43:81(A) have been published in the official journal of the state prior to the state printer's default under any contract under which it or he was designated as such state printer, the publishing of the same matter by the newspaper employed as state printer until such time as a new contract can be let for the unexpired portion of the two-year term, as provided in this Section, for the remaining number of times prescribed by law shall serve as a complete publication, without the necessity of republishing such matter for the number of times theretofore published by the state printer who has defaulted under any such contract. Should any of the matter required to be printed under R.S. 43:81(A) have been published in the newspaper employed as state printer until such time as a new contract can be let for the unexpired portion of the two-year term, as provided in this Section, the publishing of the same matter by the newspaper awarded the contract for the unexpired portion of the two-year term for the remaining number of times prescribed by law shall serve as a complete publication, without the necessity of republishing such matter for the number of times theretofore published by the newspaper employed as state printer, as aforesaid.

NOTE: §89 as amended and redesignated from R.S. 49:1308 by Acts 2025, No. 374, eff. July 1, 2027.

§89. Internet publication of certain information concerning permits and licenses; information required to be published; manner of publication

A. Each state entity that issues a permit or license shall submit the information required by Subsection B of this Section for inclusion in the Official Journal of the State.

B. All of the following information shall be included:

(1) A brief description of each permit or license that the state entity issues. For each such permit or license, links to the following shall be included:

(a) The full text of the current application.

(b) A checklist of all information required to be submitted to complete the application process.

(c) The name and contact information of the person within the state entity responsible for responding to inquiries about the status of an application.

(d) The anticipated timeline for review of a completed application.

(2) A copy of the annual report submitted to the legislative oversight committees or subcommittees by the state entity pursuant to Subsection C of this Section.

C. Each state entity shall annually submit to its legislative oversight committee or subcommittee a report containing the number of permit or license applications received, the number of permits or licenses issued, and timelines for approval of an application.

D. For the purposes of this Section, "state entity" means any department, office, division, commission, council, board, bureau, or other regulatory agency of state government.

Acts 2022, No. 590, §1; Acts 2025, No. 374, §§2, 3, 4(A), eff. July 1, 2027; Redesignated from R.S. 49:1308.

RS 43:90

Supervision of contracts by division of administration

NOTE: §90 eff. until July 1, 2027. See Acts 2025, No. 374.

§90. Supervision of contracts by division of administration

All matters and things in connection with the receiving of bids, letting or awarding of the contract under the provisions of this Chapter, shall be under the direction and supervision of the Division of Administration, Office of the Governor of the State.

NOTE: §90 as repealed by Acts 2025, No. 374, eff. July 1, 2027.

§90. Repealed by Acts 2025, No. 374, §3, eff. July 1, 2027.

Acts 1954, No. 127, §10; Acts 2025, No. 374, §3, eff. July 1, 2027.

RS 43:111

Advertising; when prohibited and when authorized

CHAPTER 3. STATE ADVERTISEMENTS

§111. Advertising; when prohibited and when authorized

A. The state, or any department, officer, board, or commission shall not expend any public funds for advertising in any newspaper, book, pamphlet, periodical, or radio and television stations except as follows:

(1) Advertising for bids or proposals for public work, supplies, or for labor.

(2) Advertising for the sale of bonds.

(3) Advertising for the sale by educational institutions of books, equipment, produce, or other materials.

(4) Announcements by educational institutions of extension course offerings.

(5) Announcements by postsecondary vocational-technical schools of program and course offerings.

(6) Announcements by departments or auxiliary units of institutions of higher education, to promote cultural or educational programs sponsored by such departments or units for the public's cultural and intellectual benefit, limited to a maximum of fifteen percent of the cost of the event or three thousand dollars, whichever is larger.

(7) Advertising by the executive office of the secretary, the office of cultural development, the office of the state library, the office of state museums, and the office of state parks in the Department of Culture, Recreation and Tourism for the statewide development and implementation of cultural, recreational, and tourism programs when funds have been appropriated to the department for that purpose.

NOTE: Paragraph (A)(8) eff. until Oct. 1, 2027. See Acts 2025, No. 477.

(8) Advertising by the office of children and family services in the Department of Children and Family Services for the recruitment of foster or adoptive parents.

NOTE: Paragraph (A)(8) as amended by Acts 2025, No. 477, eff. Oct. 1, 2027.

(8) Advertising by the Department of Children and Family Services for the recruitment of foster or adoptive parents.

(9) Advertising by the Encore Louisiana Commission that is designed specifically to both increase the number of Louisianians who remain in the state and to authorize the commission to distribute advertising designed to promote Louisiana as a quality state for residents and tourists in the fifty year old and above demographic.

(10) Other cases where the law authorizes advertisements.

B. The prohibition against advertising in any newspaper, book, pamphlet, or periodical shall not apply to Louisiana Economic Development or to port commissions and port, harbor, and terminal districts in carrying out their respective functions and duties under the constitution and laws of this state.

C. However, any public institution of higher education, any management board thereof, and the Board of Regents may expend public funds for advertising designed for any of the following purposes:

(1) Increase the number of other race students enrolled in a public institution of higher education.

(2) Increase the percentage of black high school graduates that pursue a higher education; provided that such advertising expenditures shall not exceed the amounts necessary to implement the provision of the consent decree entered in *United States of America vs. State of Louisiana, et al.*, United States District court for the Eastern District of Louisiana, docket number 80-3300-A.

(3) Promote the goals established in the Master Plan for Public Postsecondary Education.

(4) Promote the services and programs offered by learning centers.

(5) Promote the use of online services and programs of any public institution of higher education.

D.(1) Notwithstanding any provision of law to the contrary and in addition to the exceptions provided by Subsection A of this Section and the authority provided by Subsection C of this Section, a public postsecondary educational institution annually may expend up to one-half of one percent of its total operating budget or one hundred thousand dollars, whichever amount is less, on advertising, provided such advertising is in furtherance of the duties and functions of the institution.

(2) Expenditures for advertising by a public postsecondary educational institution pursuant to Paragraphs (1) through (6) of Subsection A of this Section and Subsection C of this Section shall be excluded from calculating annual expenditures for advertising pursuant to this Subsection.

E. Whenever notice by print publication is required under applicable state law, the newspaper or statutorily-eligible publication under Chapters 3, 4, and 5 of Title 43 of the Louisiana Revised Statutes of 1950 that is publishing such notice shall, at no additional cost to government, place the notice on a website established and maintained as a statewide joint venture of a majority of Louisiana newspapers as a repository for such notices, subject to the following provisions:

(1) The newspaper or publication shall post the notice contemporaneously with the notice's first print publication. The notice shall remain archived on the statewide website for not less than one year. Any newspaper or publication subject to the requirements of this Subsection shall have access to the statewide website at no charge.

(2) Any notice posted online as required by this Subsection shall be posted and archived in its entirety, including maps and other exhibits, and shall include the publication date.

(3) Any error in a notice placed on a website pursuant to this Subsection, or any temporary website outage or service interruption prohibiting the posting or display of such notice, shall be considered harmless error and proper legal notice requirements shall be considered met if the printed notice published in the newspaper or statutorily-eligible publication is correct.

(4) Every newspaper or publication that publishes public notices shall include on its website homepage, if available, a link to its public notice section and shall include on its public notice homepage a link to the statewide public notice website described herein.

(5) All notices published on a website pursuant to this Subsection shall be accessible to the public at no charge.

(6) Nothing in this Subsection shall be construed as changing any requirement in Chapters 3, 4, and 5 of Title 43 of the Louisiana Revised Statutes of 1950.

Amended by Acts 1952, No. 168, §1; Acts 1956, No. 134, §1; Acts 1977, No. 331, §1; Acts 1980, No. 189, §1; Acts 1980, No. 394, §1; Acts 1980, No. 491, §1; Acts 1982, No. 668, §1, eff. July 22, 1982; Acts 1986, No. 804, §1, eff. July 10, 1986; Acts 1997, No. 81, §1; Acts 1999, No. 710, §1, eff. July 1, 1999; Acts 1999, No. 1088, §1, eff. July 9, 1999; Acts 2001, No. 622, §1; Acts 2003, No.

162, §1; Acts 2003, No. 551, §2; Acts 2004, No. 35, §1, eff. May 21, 2004; Acts 2009, No. 342, §2; Acts 2011, No. 183, §1; Acts 2015, No. 457, §1; Acts 2025, No. 477, §13, eff. Oct. 1, 2027.

RS 43:111.1

Advertisements paid for with public funds, restrictions

§111.1. Advertisements paid for with public funds, restrictions

No public funds shall be used in whole or in part for the payment of the cost of any advertisement containing therein the name of any public official whether elected or appointed; provided, however, that the provisions of this section shall in no case be construed to apply to advertisements or notices required or authorized by law to be published or to any advertisements placed by any public agency or body authorized by law to advertise in the furtherance of its functions and duties.

Added by Acts 1968, No. 613, §1.

RS 43:112

Penalties

§112. Penalties

Any officer of the state, or any member or officer of any state department, board, or commission, who violates R.S. 43:111, shall be fined not less than one hundred dollars, nor more than five hundred dollars or be imprisoned for not less than three months, nor more than six months, or both.

RS 43:140

Definitions

CHAPTER 4. OFFICIAL JOURNALS OF POLITICAL SUBDIVISIONS

PART I. OFFICIAL JOURNAL OF PARISHES,

MUNICIPALITIES, AND SCHOOL BOARDS

§140. Definitions

As used in this Chapter, the following terms shall have the meanings ascribed to them in this Section:

(1) "Bona fide paying subscribers" shall mean persons who have subscribed at a subscription rate which is not nominal, whether by mail subscriptions, purchases through dealers and carriers, street vendors and counter sellers, or any combination thereof, but shall not include free circulation, sales at token or nominal subscription price, and sales in bulk for purposes other than for resale for individual subscribers.

(2) "General paid circulation" shall not include publications when one-half or more of all copies circulated are provided free of charge to the ultimate recipients, or are paid for at nominal rates by the ultimate recipients.

(3) "Newspaper" shall mean a publication that complies with the requirement of R.S. 43:141.1(A) and during each year of the two-year period prior to the first publication of any legal or official notice therein:

(a) Has been published at regular intervals of not less than weekly.

(b) Has been originated and published for the dissemination of current news and intelligence of varied, broad, and general public interest, including regular news coverage of local public meetings and events, and is not devoted to the interests of, or published for the entertainment or instruction of, or has a circulation restricted to, any particular sect, denomination, labor or fraternal organization, or other special group or class of citizens.

(c) Has not been published primarily for advertising purposes and has not contained more than seventy-five percent advertising in more than one-half of its issues, excluding separate advertising supplements inserted into but separately identifiable from any regular issue or issues.

(d) Has maintained a general paid circulation to bona fide paying subscribers within the area the publication is required.

(4) "Nominal rate(s)" shall mean a price which is so small or slight that it is not considered real or substantial in comparison with what might reasonably be expected.

(5) "Office" shall mean the newspaper's principal public business office and need not be the place at which the newspaper's printing presses are physically located. A newspaper shall have only one principal public business office; however, any newspaper with a principal business office in a parish adjoining Jefferson Parish which within one year prior to June 1, 1986, has actually published official proceedings of any municipal corporation, parish council, police jury, or school board in Jefferson Parish shall be deemed to be published in an office physically located in both the parish where the newspaper maintains its principal business office and Jefferson Parish.

Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 2011, 1st Ex. Sess., No. 36, §1; Acts 2023, No. 178, §1; Acts 2024, No. 464, §1.

RS 43:140.1

Exception due to certain publishing requirements

§140.1. Exception due to certain publishing requirements

A newspaper that meets the requirements of this Part but would be precluded from selection as an official journal because specific notice publication requirements require a more frequent publishing schedule than the newspaper's established schedule may be selected as an official journal if the newspaper can publish the notice in a time period that is not more than five days longer than the period otherwise required by law. If such a newspaper is selected, any notice publication that could not be completed timely because of the newspaper's publishing schedule but that is completed within five days after the required period is deemed to be in compliance with the applicable publishing requirements.

Acts 2024, No. 464, §1.

RS 43:140.2

News deserts

§140.2. News deserts

A. Notwithstanding the provisions of R.S. 43:140(3) and 142, the provisions of this Section are applicable to a parish or a political subdivision in a parish that meets all of the following criteria:

(1) There is not a newspaper that is eligible to be selected as an official journal.

(2) The population of the parish is fewer than two hundred thousand persons as determined by the most recent federal decennial census.

(3) If the population of the parish is greater than one hundred thousand persons, it is not adjacent to a parish with a population greater than two hundred thousand persons, all as determined by the most recent federal decennial census.

B.(1) In such a parish, "newspaper" shall mean a publication that complies with the requirement of R.S. 43:141.1(A) and during the year prior to the first publication of any legal or official notice therein:

(a) Has been published at regular intervals of not less than weekly.

(b) Has been originated and published for the dissemination of current news and intelligence of varied, broad, and general public interest, including regular news coverage of local public meetings and events, and is not devoted to the interests of, or published for the entertainment or instruction of, or has a circulation restricted to, any particular sect, denomination, labor or fraternal organization, or other special group or class of citizens.

(c) Has not been published primarily for advertising purposes and has not contained more than seventy-five percent advertising in more than one-half of its issues, excluding separate advertising supplements inserted into but separately identifiable from any regular issue or issues.

(d) Has maintained a general paid circulation to bona fide paying subscribers within the area the publication is required.

(2) In such a parish, to be selected as an official journal, the newspaper:

(a) Shall have been published in an office physically located in the parish in which the body is located for one year preceding the selection.

(b) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster.

(c) Shall have maintained a general paid circulation in the parish in which the body is located for one year prior to the selection.

(d) Shall have been entered in a U.S. post office in the state of Louisiana under a periodical permit in the state for one year prior to the selection.

Acts 2024, No. 464, §1.

RS 43:141

Official journal to be selected by police juries, city and parish councils, municipal corporations, and school boards

§141. Official journal to be selected by police juries, city and parish councils, municipal corporations, and school boards

A. The police juries, city and parish councils, municipal corporations, and school boards in all the parishes, the parish of Orleans excepted, at their first meeting in June of each year, shall select a newspaper as official journal for their respective parishes, towns, or cities for a term of one year.

B. In any parish which is divided by the Mississippi River and has a population of not less than one hundred thousand the governing body shall have the authority to select two official journals for their respective parishes, one of which shall be located on one bank of the river and the other which shall be located on the opposite bank thereof and no act heretofore performed shall be considered invalid because of any such parish having heretofore designated two such official journals.

Amended by Acts 1958, No. 515, §1; Acts 1986, No. 378, §1, eff. July 2, 1986.

RS 43:141.1

Requirement for website

§141.1. Requirement for website

A. Every official journal selected pursuant to this Part shall have a website and shall post all official proceedings and public notices that it publishes on that website and on a collective website in which a majority of the state's official journals participate.

B. Parish and municipal governing authorities and school boards may publish on their respective websites a copy of the official proceedings and public notices that they are required to publish in their official journals.

Acts 2023, No. 178, §1.

RS 43:142

Qualifications of newspaper

§142. Qualifications of newspaper

The newspaper:

(1) Shall have been published in an office physically located in the parish in which the body is located for a period of two years preceding the selection.

(2) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster.

(3) Shall have maintained a general paid circulation in the parish in which the body is located for two consecutive years prior to the selection.

(4) Shall have been entered in a U.S. post office in the state of Louisiana under a periodical permit in the state for a period of two consecutive years prior to the selection.

Acts 1950, No. 289, §1; Acts 1952, No. 276, §1; Acts 1970, No. 111, §1; Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 1997, No. 422, §1; Acts 2011, 1st Ex. Sess., No. 36, §1; Acts 2014, No. 197, §1, eff. May 22, 2014; Acts 2024, No. 464, §1.

NOTE: See also R.S. 43:140(3) regarding definition of newspaper.

RS 43:143

Newspaper selected to be known as official journal; duties

§143. Newspaper selected to be known as official journal; duties

The newspaper selected shall be known as the official journal of the parish, town, city or school board, and it shall publish all minutes, ordinances, resolutions, budgets and other official proceedings of the police jury, town or city councils, or the school board.

RS 43:143.1

Publications; errors and omissions; billing; retention period

§143.1. Publications; errors and omissions; billing; retention period

A. Except where constitutionally infirm, any fault in the publication of any official proceeding or public notice to be published in the official journal that is not due to the negligence of the public body shall not affect the validity of the publication of the proceeding or notice.

B.(1) An official journal that publishes official proceedings and public notices shall, within thirty days after such a publication, submit a bill for the publication with a copy of the original published proceeding or notice and a verified statement that does both of the following:

(a) States the rate charged to the political subdivision for the publication.

(b) Certifies the number and dates of publication.

(2) No compensation for such publishing is payable unless the bill is accompanied by the verified statement required in this Subsection.

C.(1) Official proceedings and public notices shall be retained by the Louisiana Public Notice program promulgated by the Louisiana Press Association for a minimum period of three years.

(2) Official proceedings and public notices shall be retained by the political subdivision in accordance with R.S. 44:36.

Acts 2023, No. 178, §1.

RS 43:144

Penalty for failure to have proceedings published

§144. Penalty for failure to have proceedings published

The official of any municipal corporation, police jury, or school board by law responsible for the preparing and recording of the official proceedings who, within twenty days from the date of any meeting at which the official proceedings were had, wilfully neglects or fails to furnish the official journal with a copy of the minutes, ordinances, resolutions, budgets, and proceedings for publication, shall be fined not less than twenty-five dollars nor more than five hundred dollars, or be imprisoned for not less than ten days nor more than six months, or both.

Acts 2010, No. 251, §1.

RS 43:145

Municipalities to select newspaper located within their boundaries

§145. Municipalities to select newspaper located within their boundaries

Municipal corporations shall select an official journal published in an office physically located within their municipal boundaries if a newspaper as defined in R.S. 43:140(3) is published therein. If no qualified newspaper is published within the municipal boundaries, a newspaper published in the parish of the municipal corporation which meets the requirements of a newspaper as defined in R.S. 43:140(3) shall be selected.

Acts 1986, No. 378, §1, eff. July 2, 1986.

RS 43:146

Designation of other newspaper when no newspaper published in the parish

§146. Designation of other newspaper when no newspaper published in the parish

Where there is no newspaper published in an office physically located within the parish which meets the requirements of R.S. 43:140(3), a newspaper in an adjoining parish may be designated as the official journal.

Acts 1986, No. 378, §1, eff. July 2, 1986.

RS 43:147

Compensation for printing

NOTE: §147 eff. until July 1, 2027. See Acts 2023, No. 178.

§147. Compensation for printing

A. The parish and municipal governing authorities and school boards of this state may have their official proceedings and public notices published by contract, compensation for which shall not exceed the amounts provided by this Section unless agreed by both parties in writing. Payment may be made monthly or quarterly at the option of the governing authority or school board.

B. When publication is not done by contract, the cost of advertisement in all parishes which do not contain a city of over one hundred thousand population shall not exceed the rate of six dollars per square of one hundred words or a fraction thereof. When the insertion contains material to be set in tabular form, the tabulated matter shall be computed on the basis of the number of words of straight matter which would occupy identical space.

C. The agate line shall be the unit of basis of measurement and charges for all official proceedings published in parishes containing a city of more than one hundred thousand, but less than three hundred thousand population. When the publication of the proceedings is not done by contract providing for a lesser amount, the printing shall be let at not over thirty-three cents per agate line of space occupied by each insertion.

D. The agate line shall be the unit or basis of measurement and charge for all official proceedings published in parishes containing a city of more than three hundred thousand population. When the publication of the proceedings is not done by contract providing for a lesser amount, the printing shall be let at not over thirty-seven cents per agate line of space occupied by each insertion.

NOTE: §147 as repealed by Acts 2023, No. 178, eff. July 1, 2027.

§147. Repealed by Acts 2023, No. 178, §2, eff. July 1, 2027.

Amended by Acts 1962, No. 138, §1; Acts 1972, No. 89, §1; Acts 1976, No. 485, §1; Acts 1980, No. 317, §1, eff. June 1, 1981; Acts 1999, No. 501, §2, eff. June 28, 1999; Acts 2023, No. 178, §1; Acts 2023, No. 178, §2, eff. July 1, 2027.

RS 43:147.1

Compensation for printing; per character

§147.1. Compensation for printing; per character

A. The parish and municipal governing authorities and school boards of this state may have their official proceedings and public notices published by contract, compensation for which shall not exceed the amounts provided by this Section unless agreed to by both parties in writing. Payment may be made monthly or quarterly at the option of the governing authority or school board.

B.(1) In all parishes that do not contain a city with a population of more than one hundred thousand, the cost of publishing official proceedings and public notices shall not exceed the rate of one and one-half cents per character. When the insertion contains material to be set in tabular form or is submitted prebuilt, the rate will be computed at two dollars seventy-six cents per square inch based on six-point type and six-point font. If the notice is set in larger type or font, the rate shall be prorated. Regardless of the size of type the notice is set in, the rates specified in this Paragraph are based on a printable space of one-inch-high and one-inch-wide column. If the page width is either wider or narrower for a single column, the rate per column shall be prorated.

(2) In all parishes that contain a city with a population of more than one hundred thousand, the cost of publishing official proceedings and public notices shall not exceed the rate of two cents per character. When the insertion contains material to be set in tabular form or is submitted prebuilt, the rate will be computed at three dollars ninety-six cents per square inch based on six-point type and six-point font. If the notice is set in larger type or font, the rate shall be prorated. Regardless of the size of type the notice is set in, the rates specified in this Paragraph are based on a printable space of one-inch-high and one-inch-wide column. If the page width is either wider or narrower for a single column, the rate per column shall be prorated.

(3) For purposes of this Subsection, "character" means an alphanumeric character and any punctuation or other character, all of which have been requested by the public body, and shall not include letting, kerning, or spacing unless additional letting, kerning, or spacing is ordered by the public body at a cost agreed to in writing.

C. The charge for publication of official proceedings and public notices on the website of either the official journal or a public notice website in which official journals participate shall be subsumed within the applicable publication rate.

Acts 2023, No. 178, §1.

RS 43:147.2

Compensation for printing; January 1, 2024, through December 31, 2026

NOTE: §147.2 eff. until July 1, 2027. See Acts 2023, No. 178.

§147.2. Compensation for printing; January 1, 2024, through December 31, 2026

A. Notwithstanding the provisions of R.S. 43:147.1, from January 1, 2024, through December 31, 2026, any qualified newspaper may submit a bid using the provisions of R.S. 43:147 or the provisions of R.S. 43:147.1, or both, at the newspaper's option, and the bid may be accepted by the governing authority.

B. Notwithstanding any other provision to the contrary, beginning January 1, 2027, qualified newspapers shall submit to parish and municipal governing authorities and school boards, upon the request of any such body, bids for official proceeding and public notice by online publication pursuant to R.S. 43:147.1, unless the governing body requests otherwise.

C. Any online publication pursuant to this Section shall include, at no additional charge unless agreed by the parties, a printed advertisement that describes the subject matter of the publication by the parish or municipal governing authority or school board and directs readers to the location of the full online publication on the website of the official journal or on a public notice internet website in which a majority of the state's official journals participate.

NOTE: §147.2 as repealed by Acts 2023, No. 178, eff. July 1, 2027.

§147.2. Repealed by Acts 2023, No. 178, §2, eff. July 1, 2027.

Acts 2023, No. 178, §1; Acts 2023, No. 178, §2, eff. July 1, 2027.

RS 43:147.3

Cost of Publication

§147.3. Cost of publication

The official journal of a political subdivision shall include a statement of the cost charged to the political subdivision for publication with any proceeding, notice, or other information that it publishes for the political subdivision pursuant to a legal requirement that the information be published. The official journal shall not charge the political subdivision for printing this statement of cost.

Acts 2024, No. 464, §1.

RS 43:148

Bids may be required

§148. Bids may be required

In printing what is generally designated as job work, or commercial printing, bids may be required for any work exceeding twenty-five dollars, and the contract shall then be awarded to the lowest bidder.

RS 43:149

Vacancy; how filled

§149. Vacancy; how filled

In case of vacancy the governing body shall select an official journal for the unexpired term.

RS 43:150

Official journal; notification of secretary of state

§150. Official journal; notification of secretary of state

Prior to January 1, 1985, and at least thirty days after effecting any change in its official journal, each parish, municipality, and school board shall file with the secretary of state the name and address of its official journal, the effective date of the selection, and the period for which the selection is effective. For purposes of meeting the requirements of Article III, Section 13 of the Constitution of Louisiana, the official journal on file with the secretary of state shall be the official journal of the parish, municipality, or school board.

Acts 1984, No. 427, §1.

RS 43:171

Selection of newspaper

PART II. OFFICIAL JOURNAL OF OTHER POLITICAL SUBDIVISIONS

§171. Selection of newspaper

A.(1) Levee, drainage, subdrainage, road, subroad, navigation, and sewerage districts, or other political subdivisions of the state and parishes, shall have the proceedings of their board and such financial statements required by and furnished to the legislative auditor published in a newspaper. The newspaper shall be selected at their first meeting in June of each year for a term of one year.

(2) The newspaper:

(a) Shall have been published in an office physically located in the political subdivision for at least two years prior to its selection.

(b) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster.

(c) Shall have maintained a general paid circulation in the district or political subdivision for two consecutive years prior to the selection.

(d) Shall have been entered in a U.S. post office in the state of Louisiana under a periodical permit in the state for a period of two consecutive years prior to selection.

(3) If there is no newspaper published in the district or political subdivision, a newspaper published in the parish in which the board is domiciled for two consecutive years prior to selection shall be selected, provided that it meets the other qualifications contained in this Section.

B. Repealed by Acts 2024, No. 464, §2.

C. If no newspaper is published in an office physically located in the district, political subdivision, or the parish of the domicile of the board which meets the requirements of this Chapter, a newspaper published in an office physically located in an adjoining parish may be selected, which has a general paid circulation within the limits of the district or political subdivision and which meets the requirements of a newspaper as defined in R.S. 43:140(3).

Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 1997, No. 422, §1; Acts 2011, 1st Ex. Sess., No. 36, §1; Acts 2014, No. 197, §1, eff. May 22, 2014; Acts 2024, No. 464, §§1, 2.

RS 43:171.1

Exception due to certain publishing requirements

§171.1. Exception due to certain publishing requirements

A newspaper that meets the requirements of this Part but would be precluded from selection as an official journal because specific notice publication requirements require a more frequent publishing schedule than the newspaper's established schedule may be selected as an official journal if the newspaper can publish the notice in a time period that is not more than five days longer than the period otherwise required by law. If such a newspaper is selected, any notice publication that could not be completed timely because of the newspaper's publishing schedule but that is completed within five days after the required period is deemed to be in compliance with the applicable publishing requirements.

Acts 2024, No. 464, §1.

RS 43:171.2

News deserts

§171.2. News deserts

A. Notwithstanding the provisions of R.S. 43:171(A), the provisions of this Section are applicable to a political subdivision in a parish that meets the following criteria:

(1) There is not a newspaper that is eligible to be selected as an official journal.

(2) The population of the parish is fewer than two hundred thousand persons as determined by the most recent federal decennial census.

(3) If the population of the parish is greater than one hundred thousand persons, it is not adjacent to a parish with a population of greater than two hundred thousand persons, all as determined by the most recent federal decennial census.

B. In such a parish, to be selected as an official journal, the newspaper:

(1) Shall have been published in an office physically located in the parish in which the body is located for one year preceding the selection.

(2) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster.

(3) Shall have maintained a general paid circulation in the parish in which the body is located for one year prior to the selection.

(4) Shall have been entered in a U.S. post office in the state of Louisiana under a periodical permit in the state for one year prior to the selection.

Acts 2024, No. 464, §1.

RS 43:172

Contracts

§172. Contracts

The governing authorities of the political subdivisions listed in R.S. 43:171 may make a contract with the official journal for its publishing, or if no contract is entered into, then the rate allowed by law shall govern as in the matter of all legal printing.

RS 43:173

Repealed by Acts 1986, No. 378, 2, eff. July 2, 1986.

§173. Repealed by Acts 1986, No. 378, §2, eff. July 2, 1986.

RS 43:174

Notification of secretary of state

§174. Notification of secretary of state

Prior to January 1, 1985, and at least thirty days after effecting any change in the official journal, the governing authority of each political subdivision subject to the provisions of this Part shall file with the secretary of state the name and address of its official journal, the effective date of the selection, and the period for which the selection is effective. For purposes of meeting the requirements of Article III, Section 13 of the Constitution of Louisiana, the official journal on file with the secretary of state shall be the official journal of the political subdivision. If any political subdivision subject to the provisions of this Part fails to file with the secretary of state the information required by this Section, the official journal of the parish or parishes in which the political subdivision is situated shall be the official journal for purposes of meeting the requirements of Article III, Section 13 of the Constitution of Louisiana.

Acts 1984, No. 427, §1.

RS 43:175

Cost of publication

§175. Cost of publication

The official journal of a political subdivision shall include a statement of the cost charged to the political subdivision for publication with any proceeding, financial statement, notice, or other information that it publishes for the political subdivision pursuant to a legal requirement that the information be published. The official journal shall not charge the political subdivision for printing this statement of cost.

Acts 2024, No. 464, §1.

RS 43:181

Auxiliary official journals of political subdivisions

PART III. AUXILIARY OFFICIAL JOURNALS

§181. Auxiliary official journals of political subdivisions

A.(1) The governing authority of political subdivisions or the official charged with the selection may annually select an auxiliary official journal for a term not exceeding one year. An auxiliary official journal shall be a newspaper which has been published in an office physically located in the parish in which the body is located for a period of five years preceding the selection.

(2) The newspaper:

(a) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster;

(b) Shall have maintained a general paid circulation in the parish in which the body is located for five years prior to the selection; and

(c) Shall have been entered in a U.S. post office in that parish under a periodical permit in that parish for a period of five consecutive years prior to the selection.

(3) Selection of an auxiliary official journal shall be confined to those cities in excess of one hundred thousand population.

(4) The provisions of this Section relating to the five year requirement shall not contravene any contract existing between any governing body and a newspaper on and prior to May 11, 1970; nor shall the five year requirement herein be applied in assessing the qualifications of a newspaper which was in existence on May 11, 1970.

B. In each instance where the governing authority of a political subdivision is required by law to publish more than one notice, advertisement, legal notice, judicial advertisement, or other publication in an official journal or otherwise, the governing authority of the political subdivision or the official charged with the selection may elect to publish one of the required publications in an auxiliary official journal at a rate not exceeding the rate to publish the same in the official journal; and, the said publication shall constitute publication in an official journal for the purposes of any law.

C. In addition to publishing the publications required by law, the governing authority of a political subdivision or the official charged with the selection may elect to publish the required publication for any public purpose in an auxiliary official journal not in excess of the number of times required for the official publication and at a rate not exceeding the rate for publication of the same in the official journal, and said additional publications made pursuant to this Subsection shall not constitute official publications.

D. Political subdivisions may appropriate and spend funds pursuant to the authority granted in this Section.

Added by Acts 1977, No. 413, §1. Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 1997, No. 422, §1.

CHAPTER 5. JUDICIAL ADVERTISEMENTS AND LEGAL NOTICES

§200. Definitions

As used in this Chapter, the following terms shall have the meanings ascribed to them in this Section:

(1) "Bona fide paying subscribers" means persons who have subscribed at a subscription rate which is not nominal, whether by mail subscriptions, purchases through dealers and carriers, street vendors and counter sellers, or any combination thereof, but shall not include free circulation, sales at token or nominal subscription price, and sales in bulk for purposes other than for resale for individual subscribers.

(2) "General paid circulation" shall not include publications when one-half or more of all copies circulated are provided free of charge to the ultimate recipients, or are paid for at nominal rates by the ultimate recipients.

(3)(a) "Newspaper" means a publication that during each year of the five-year period prior to the first publication of any legal or official notice therein:

(i) Has been published at regular intervals of not less than weekly.

(ii) Has been originated and published for the dissemination of current news and intelligence of varied, broad, and general public interest, including regular news coverage of local public meetings and events, and is not devoted to the interests of, or published for the entertainment or instruction of, or has a circulation restricted to, any particular sect, denomination, labor or fraternal organization, or other special group or class of citizens.

(iii) Has not been published primarily for advertising purposes and has not contained more than seventy-five percent advertising in more than one-half of its issues, excluding separate advertising supplements inserted into but separately identifiable from any regular issue or issues.

(iv) Has maintained a general paid circulation to bona fide paying subscribers within the area the publication is required.

(b) For purposes of qualifications for publishing official proceedings, legal notices, or advertisements in the parishes of Jefferson and Orleans, the provisions of this Paragraph relating to a five-year requirement shall not apply to a daily newspaper with a general paid circulation when such newspaper has maintained a public business office in Orleans Parish for eight consecutive months prior to January 1, 2014.

(4) "Nominal rate(s)" means a price which is so small or slight that it is not considered real or substantial in comparison with what might reasonably be expected.

(5) "Office" means the newspaper's principal public business office and need not be the place at which the newspaper's printing presses are physically located. A newspaper shall have only one principal public business office; however, any newspaper with a principal business office in a parish adjoining Jefferson Parish which, within one year prior to June 1, 1986, has actually published official proceedings of any municipal corporation, police jury, or school board in Jefferson Parish shall be deemed to be published in an office physically located in both the parish where the newspaper maintains its principal business office and Jefferson Parish.

Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 2011, 1st Ex. Sess., No. 36, §1; Acts 2014, No. 197, §1, eff. May 22, 2014.

RS 43:201

Judicial advertisements and legal notices; parishes outside parish of Orleans

§201. Judicial advertisements and legal notices; parishes outside parish of Orleans

A. All parishes of the state, outside of the parish of Orleans, when advertisements or publication of notices are required to be made in relation to judicial proceedings, or in the sale of property under judicial process, or in any other legal proceedings of any kind, shall publish them in an English language newspaper published in an office physically located in the parish in which the proceedings are carried on. The newspaper shall be selected by the sheriff, constable, clerk, or other officer, as the case may be, who is charged with the conduct of the sale or proceeding. The official whose responsibility it is to select a newspaper shall make his selection in June of each year for a term of one year. If there is no newspaper published in the parish, all advertisements or notices shall be made by posting them at or near the front door of the courthouse, or the place used as such, and at two other public places in different parts of the parish.

B. The newspaper:

(1) Shall have been published in an office physically located in the parish in which the body is located for a period of five years preceding the selection.

(2) Shall not have missed during that period as many as three consecutive issues unless caused by fire, flood, strike, or natural disaster.

(3) Shall have maintained a general paid circulation in the parish in which the body is located for five consecutive years prior to the selection.

(4) Shall have been entered in a U.S. post office in that parish under a periodical permit in that parish for a period of five consecutive years prior to the selection.

C. The provisions of this Section relating to the five-year requirement shall not contravene any contract existing between any governing body and a newspaper on and prior to May 11, 1970; nor shall the five-year requirement herein be applied in assessing the qualifications of a newspaper which was in existence on May 11, 1970; nor shall any provision of this Chapter prohibit a publication being selected to publish judicial advertisements and legal notices in Jefferson Parish when the publication has actually published official proceedings within one year prior to June 1, 1986 of any municipal corporation, parish council, police jury, or school board within Jefferson Parish.

D.(1) In Jefferson Parish, no provision of this Chapter shall prohibit a weekly publication being selected to publish judicial advertisements and legal notices if the publication has maintained a public business office for at least five consecutive months in the parish prior to June 1, 2006, and maintained a total circulation of at least twenty-five thousand for at least three consecutive years immediately prior to being selected.

(2) Notwithstanding any provision of this Section, in Jefferson Parish a daily newspaper with a general paid circulation may be selected to publish judicial advertisements and legal notices if such newspaper has maintained a public business office in Orleans Parish for eight consecutive months prior to January 1, 2014.

(3) In Jefferson Parish, the total circulation of every publication or newspaper shall be proved not less than annually by an experienced publication auditing firm prior to the selection of the publication or newspaper under this Section. The audit shall reflect the circulation of the publication or newspaper by parish, and shall be submitted as an attachment to any proposal by a publication or newspaper to publish judicial advertisements and legal notices in Jefferson Parish.

E. Repealed by Acts 2014, No. 197, §2, eff. May 22, 2014.

Amended by Acts 1950, No. 289, §2; Acts 1970, No. 111, §1; Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 1997, No. 422, §1; Acts 2009, No. 312, §1; Acts 2011, 1st Ex. Sess., No. 36, §1; Acts 2014, No. 197, §§1, 2, eff. May 22, 2014.

RS 43:201.1

Judicial advertisements and legal notices; alternative method of publication

§201.1. Judicial advertisements and legal notices; alternative method of publication

A. Notwithstanding any provision of law to the contrary, when advertisements are required to be made in relation to judicial proceedings, in the sale of property under judicial process, or in any other legal proceedings of whatever kind in a parish which contains a municipality with a population of three hundred thousand or more as determined by the latest federal decennial census, such advertisements and legal notices shall be published in a newspaper or other publication which (i) is domiciled in such parish, (ii) is published in the English language at least weekly, (iii) meets the requirements of R.S. 43:200(3)(a), (b), and (c), and (iv) has maintained a total circulation of at least thirty thousand for at least five consecutive years prior to it being selected. The newspaper or other publication shall be selected in June of each year, for a term of one year, by the sheriff, constable, clerk, or other officer, as the case may be, who is charged with the conduct of such sales requiring the advertisement.

B. The total circulation of a newspaper or other publication selected to publish judicial advertisements under this Section shall be proved not less than annually by an experienced publication auditing firm prior to the selection of the newspaper or other publication. The audit shall reflect the total circulation of the newspaper or other publication, and a copy of the most recent audit shall be submitted as an attachment to any proposal by a qualifying newspaper or other publication to publish judicial advertisements and legal notices.

C. Notwithstanding any provision of law to the contrary, when additional judicial advertisements are required to be inserted in an auxiliary journal in a parish with a population of three hundred thousand or more as determined by the latest federal decennial census, such auxiliary journal must have been published for at least seventy-five years prior to the insertion of the advertisement or publication, have been previously selected for no less than five years as an auxiliary journal for such parish, and not be eligible to be selected, pursuant to Subsection A of this Section, by the sheriff, constable, clerk, or other officer, as the case may be, of such parish to publish advertisements in relation to judicial proceedings, in the sale of property under judicial process, or in any other legal proceedings of whatever kind.

D. The provisions of this Section shall supersede and control to the extent of conflict with any other provisions of law.

Acts 2012, No. 825, §2, eff. June 14, 2012.

RS 43:202

Judicial advertisements in parish of Orleans

§202. Judicial advertisements in parish of Orleans

A. In the parish of Orleans, when advertisements are required to be made in relation to judicial proceedings, or in the sale of property under judicial process, or in any other legal proceedings of whatever kind, the advertisement shall be inserted in a daily newspaper published in an office physically located in the parish of Orleans and published in the English language, and which has been published as a daily paper for at least five years prior to the insertion of the advertisement or publication. The newspaper shall be selected by the sheriff, constable, clerk, or other officer, as the case may be, who is charged with the conduct of the sale. The responsible official selecting the newspaper to publish judicial advertisements and legal notices shall make his selection in June of each year for a term of one year. The newspaper selected shall meet the requirements of a newspaper as defined in R.S. 43:200(3) and shall have been entered in a U.S. post office in Orleans Parish under a periodical permit for a period of five years preceding its selection to publish legal advertisements and legal notices.

B. In the parish of Orleans, when advertisements are required to be made in relation to judicial proceedings, or in the sale of immovable property under judicial process, or in any other legal proceedings of whatever kind, additional judicial advertisements shall also be inserted in an auxiliary journal which satisfies the requirements of law pertaining to official journals of political subdivisions. The requirements of this Subsection shall not apply to the advertisement of movable property in any proceeding.

C. Should either of the notices as provided in Subsection A or B of this Section, but not both, contain errors or omissions which make it legally deficient to accomplish the requirements of notice as provided by law then in such event the advertisement which is legally sufficient to accomplish notice as provided by law shall be sufficient to fulfill the notice requirements of law notwithstanding that only one such notice was in proper form and published correctly.

D. Notwithstanding any provision of this Section, in Orleans Parish a daily newspaper with a general paid circulation may be selected to publish judicial advertisements and legal notices if such newspaper has maintained a public business office in Orleans Parish for eight consecutive months prior to January 1, 2014.

Acts 1986, No. 378, §1, eff. July 2, 1986; Acts 1992, No. 936, §1; Acts 1997, No. 422, §1; Acts 1999, No. 630, §1, eff. June 30, 1999; Acts 2001, No. 791, §1; Acts 2014, No. 197, §1, eff. May 22, 2014.

RS 43:203

Judicial advertisements, publication, exceptions

§203. Judicial advertisements, publication, exceptions

When publication is required by law of any notice of a judicial sale, or of the filing of a tableau of distribution, account, application for appointment or for authority, or of any other notice in a judicial proceeding:

(1) When only one publication is required by the applicable code or statutory provision, the newspaper advertisement of such notice shall be published at least ten days before the date of the judicial sale, or the expiration of the delay allowed in the notice for the filing of an opposition or answer, or for any other appearance or act;

(2) When two publications are required of notice of a judicial sale by public auction, the first newspaper advertisement of such notice shall be published at least thirty days before the date of the judicial sale, and the second advertisement shall be published not earlier than seven days before, and not later than the day before, the judicial sale;

(3) The first newspaper advertisement of the notice required by Article 3282 of the Louisiana Code of Civil Procedure, to authorize the private sale of immovable property of a succession, shall be published at least twenty days before, and the second newspaper advertisement shall be published the day before, the commencement of the delay allowed for the filing of an opposition to the proposed sale.

(4) When the court orders additional advertisements of notice of a judicial sale, Paragraphs (1), (2), or (3) of this Section, whichever is applicable, must be complied with. The additional advertisements shall be published prior to the judicial sale, or prior to the commencement of the delay allowed for the filing of an opposition or answer, as the case may be, on the dates designated in the court order; or, if not so designated, on the dates designated by the party requesting the publication.

In computing the required interval of time after the advertisement provided in Paragraph (1) of this Section, or after the first advertisement provided in Paragraph (2) of this Section, neither the date of such advertisement nor the date of the expiration of the delay, or the date of the judicial sale, as the case may be, is included. In computing the required interval of time after the first advertisement provided in Paragraph (3) of this Section, neither the date of such advertisement nor the date of the commencement of the delay for the filing of an opposition thereto is included.

When Paragraphs (1), (2), or (3) of this Section, whichever is applicable, is complied with, the publication of a larger number of newspaper advertisements than required by law or by court order does not affect the validity of the publication, but the expense of the unnecessary advertisements may not be taxed as costs.

The provisions of this Section do not apply to, or otherwise affect, the judicial advertisements required by Articles 803, 4432, and 4624 of the Louisiana Code of Civil Procedure, or by R.S. 9:1583.

Added by Acts 1960, No. 34, §2, eff. Jan. 1, 1961. Amended by Acts 1961, No. 26, §1; Acts 1972, No. 627, §1.

RS 43:204

Advertisements to be in English; duplication in French permitted

§204. Advertisements to be in English; duplication in French permitted

A. When advertisements are required to be made in relation to judicial process, or in the sale of property for unpaid taxes, or under judicial process or any other legal process of whatever kind, they shall be made in the English language and may in addition be duplicated in the French language.

B. State and local officials and public institutions are reconfirmed in the traditional right to publish documents in the French language in addition to English.

Amended by Acts 1968, No. 256, §1.

RS 43:205

Costs of legal advertisements; penalty for accepting rebate

§205. Costs of legal advertisements; penalty for accepting rebate

A. In all parishes, the cost of all advertisements in relation to judicial proceedings, or in the sale of property under judicial process, or in any other legal proceedings of any kind, shall be a maximum of ninety percent of the commercial display advertising rate charged by the newspaper for a similar volume of business. Notwithstanding any law to the contrary, the cost of advertisements charged to a state agency when said publication is required by law in all parishes which do not contain a city of over one hundred thousand population shall not exceed the rate of five dollars per square of one hundred words or a fraction thereof. When the insertion contains material to be set in tabular form, the tabulated matter shall be computed on the basis of the number of words of straight matter which would occupy identical space.

B. Notwithstanding any law to the contrary, the agate line shall be the unit or basis of measurement and charges for all advertisements placed by a state agency when said publication is required by law, including bidding advertisements in all parishes containing a city of more than one hundred thousand but less than three hundred thousand population. The printing shall not be let at over twenty-eight cents per agate line for each insertion.

C. Notwithstanding any law to the contrary, the agate line shall be the unit or basis of measurement and charges for all advertisements placed by a state agency when said publication is required by law, including bidding advertisements in all parishes containing a city of over three hundred thousand population. The printing shall not be let at a charge of over thirty-one cents per agate line for each insertion.

D. If the newspaper refuses to publish at the rate herein specified, the advertisements shall be published in the manner provided for in cases where there are no newspapers.

E. It is unlawful for any sheriff, tax collector, clerk of court, or any other public official, or any auctioneer, administrator, executor, tutor, trustee or other legal representative of any party in any judicial proceeding or other legal proceeding to demand or accept any part of the charge for the printing or publishing in the form of a rebate or otherwise from any newspaper or publisher of a newspaper.

F. Whoever is found guilty of accepting any rebate or any other form of payment shall be fined not less than two hundred and fifty dollars nor more than one thousand dollars or shall be imprisoned for not less than thirty days nor more than six months, or both.

Amended by Acts 1962, No. 138, §1; Acts 1972, No. 89, §1; Acts 1976, No. 485, §1; Acts 1980, No. 350, §1, eff. June 1, 1981; Acts 1991, No. 989, §1.

RS 43:206

Repealed by Acts 1980, No. 350, 2, eff. June 1, 1981

§206. §§206, 207 Repealed by Acts 1980, No. 350, §2, eff. June 1, 1981

RS 43:208

Advertisements of judicial sales may be advertised in morning or afternoon newspaper

§208. Advertisements of judicial sales may be advertised in morning or afternoon newspaper

All judicial sales by public auction or otherwise, required by law or by an order of court to be advertised in a newspaper, may be published either in a morning or afternoon newspaper, provided that when the advertisement is published in an afternoon newspaper, it shall be legal if the last advertisement is in an issue of the afternoon newspaper of the day last immediately preceding the day of sale.

RS 43:209

Publication in supplement to newspaper valid

§209. Publication in supplement to newspaper valid

In all cases when it is required by law that orders, notices, or advertisements of any kind, by any public officer, shall be inserted in public newspapers, the publications and insertions shall be as valid when made in supplements to newspapers as if they had been made in the newspaper sheets.

Acts 1986, No. 378, §1, eff. July 2, 1986.

RS 43:210

Sales, advertisement must contain title of suit

§210. Sales, advertisement must contain title of suit

In all advertisements of sales of property under execution, the sheriff shall be bound to insert the title of the suit in which the writ is issued.

RS 43:211

Alienation, encumbrance, or lease of immovable property; description in advertisement or publication of notice

§211. Alienation, encumbrance, or lease of immovable property; description in advertisement or publication of notice

In all cases in which the law requires the advertisement or publication of notice of an alienation, encumbrance, or lease of immovable property, the description of the property in the advertisement or publication of notice by lot and subdivision or municipal number or by section, township, and range, including some identifying mark, if appropriate, and a reference to the conveyance or mortgage recordation shall be a legally sufficient description.

Acts 1986, No. 46, §1, eff. Jan. 1, 1987; Acts 1987, No. 273, §1.

RS 43:231

Repealed

§231. Repealed by Acts 2016, No. 55, §1, eff. May 10, 2016.

RS 43:232

Repealed

§232. Repealed by Acts 2016, No. 55, §1, eff. May 10, 2016.